BEFORE THE NATIONAL COMPANY LAW TRIBUNAL
BENCH AT ALLAHABAD
ORIGINAL COMPANY JURISDICTION
IN
COMPANY APPLICATION CA (CAA) NO. 17 / ALD / 2021
(Under Section 230-232 of the Companies Act, 2013)

[DISTRICT: KANPUR]

In the matter of Sections 230-232 and other applicable provisions of the Companies Act, 2013 read with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016

AND

IN THE MATTER OF AMALGAMATION OF

ANVI HOLDINGS PRIVATE LIMITED, a Company incorporated under the Companies Act, 1956 having its Registered Office at 'Sukhdham', Flat No. E-2, 7/17 (9-10), Tilak Nagar, Kanpur – 208002 (U.P.) having Corporate Identification Number U65923UP2015PTC073791 within the jurisdiction of this Tribunal.

Applicant / Transferor Company No.1

AND

ANVI HOUSING PRIVATE LIMITED, a Company incorporated under the Companies Act, 1956 having its Registered Office at 'Sukhdham', Flat No. E-2, 7/17 (9-10), Tilak Nagar, Kanpur – 208002 (U.P.) having Corporate Identification Number U70102UP2016PTC077230 within the jurisdiction of this Tribunal.

Applicant / Transferor Company No.2

AND

CAWNPORE HOUSING DEVELOPMENT PRIVATE LIMITED, a Company incorporated under the Companies Act, 1956 having its Registered Office at 'Sukhdham', Flat No. E-2, 7/17 (9-10), Tilak Nagar, Kanpur – 208002 (U.P.) having Corporate Identification Number U70102UP2010PTC042239 within the jurisdiction of this Tribunal.

Applicant / Transferor Company No.3

WITH

MODERN REAL ESTATES PRIVATE LIMITED, a Company incorporated under the Companies Act, 1956 having its Registered Office at 'Sukhdham', Flat No. E-2, 7/17 (9-10), Tilak Nagar, Kanpur – 208002 (U.P.) having Corporate Identification Number U70102UP2011PTC046509 within the jurisdiction of this Tribunal.

Applicant / Transferee Company

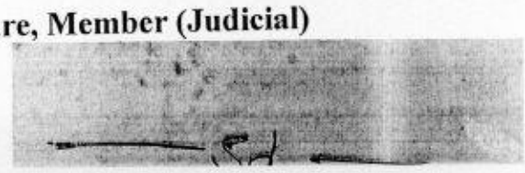
ORDER DELIVERED ON:16.08.2021

CORAM: Hon'ble Justice (Retd.) Rajesh Dayal Khare, Member (Judicial)

Appearance

For the Applicant Companies:Mr. S.K. Gupta, Practicing Company Secretary

Per: Hon'ble Justice (Retd.) Rajesh Dayal Khare, Member (Judicial)

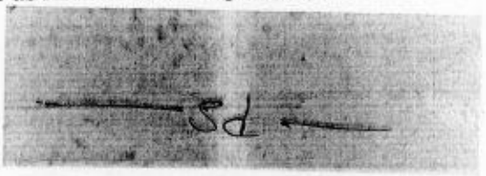


ORDER

1. This is a First Motion Application jointly filed by the Applicant Companies herein, Anvi Holdings Private Limited ('Applicant / Transferor Company No 1'), Anvi Housing Private Limited ('Applicant / Transferor Company No. 2'), Cawnpore Housing Development Private Limited ('Applicant / Transferor Company No. 3') and Modern Real Estates Private Limited ('Applicant / Transferee Company') (collectively referred to as the 'Applicant Companies') under Sections 230-232 and other applicable provisions of the Companies Act, 2013 read with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Scheme of Amalgamation (hereinafter referred to as the 'Scheme') proposed between the Applicant Companies inter-alia, seeking directions from the Hon'ble Tribunal for holding / dispensation with the requirement of convening the meetings of the Equity and Preference Shareholders, Secured and Unsecured Creditors of all the Applicant Companies. ***(The Scheme of Amalgamation is annexed as Annexure -1 to the Application).***

2. In the Application, it is stated that the Transferor Company No. 1 i.e 'Anvi Holdings Private Limited' is a 'Private Limited Company' incorporated under the provisions of the Companies Act, 1956. The Transferor Company No. 1 is a Holding Company of Anvi Housing Private Limited, the Transferor Company No. 2, Cawnpore Housing Development Private Limited, the Transferor Company No. 3 and Modern Real Estates Private Limited, the Transferee Company. The Authorised Share Capital of the Transferor Company No. 1 is Rs. 10,00,00,000/- divided into 50,00,000 Equity Shares of Rs.10/- each and 50,00,000 Preference Shares of Rs. 10/- each. The Issued, Subscribed and Paid-up Share Capital of the Transferor Company No. 1 is Rs. 3,31,00,000/- divided into 33,10,000 Equity Shares of Rs.10/- each.The Main Objects of the Transferor Company No. 1 are set out in its Memorandum and Articles of Association annexed with the Application and marked as **Annexure-2**.

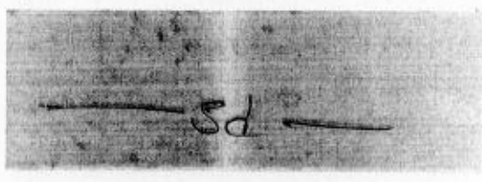
3. In the Application, it is stated that the Transferor Company No. 2 'Anvi Housing Private Limited' is a 'Private Limited Company' incorporated under the provisions of the Companies Act, 1956. The Transferor Company No. 2 is a Subsidiary of Anvi Holdings Private Limited, the Transferor Company No. 1 as its entire Paid-up Equity



Share Capital is held by the Transferor Company No. 1 in its name and in the name of its nominee. The Authorised Share Capital of the Transferor Company No. 2 is Rs. 5,90,00,000/- divided into 10,00,000 Equity Shares of Rs.10/- each and 49,00,000 Preference Shares of Rs. 10/- each. The Issued, Subscribed and Paid-up Share Capital of the Transferor Company No. 2 is Rs. 1,00,00,000/- divided into 10,00,000 Equity Shares of Rs.10/- each.The Main Objects of the Transferor Company No. 2 are set out in its Memorandum and Articles of Association annexed with the Application and marked as **Annexure-4**.

4. In the Application, it is stated that the Transferor Company No. 3'Cawnpore Housing Development Private Limited' is a 'Private Limited Company' incorporated under the provisions of the Companies Act, 1956 .The Transferor Company No. 3 is a Subsidiary of the Applicant / Transferor Company No. 1 as its entire Paid-up Equity Share Capital is held by the Applicant / Transferor Company No. 1 in its name and in the name of its nominee. The Authorised Share Capital of the Transferor Company No. 3 is Rs. 3,05,00,000/- divided into 5,50,000 Equity Shares of Rs.10/- each and 25,00,000 Preference Shares of Rs. 10/- each. The Issued, Subscribed and Paid-up Share Capital of the Transferor Company No. 3 is Rs. 3,05,00,000/- divided into 5,50,000 Equity Shares of Rs.10/- each and 25,00,000, 3% Non-Cumulative Redeemable Preference Shares of Rs. 10/- each.The Main Objects of the Transferor Company No. 3 are set out in its Memorandum and Articles of Association annexed with the Application and marked as **Annexure-6**.

5. In the Application, it is stated that the Transferee Company 'Modern Real Estates Private Limited' was originally incorporated as a 'Private Limited Company' under the provisions of the Companies Act, 1956 The Transferee Company, is a Subsidiary of Anvi Holdings Private Limited (Applicant / Transferor Company No. 1) and Cawnpore Housing Development Private Limited (Applicant / Transferor Company No. 3) as its entire Paid up Equity Share Capital is held by Cawnpore Housing Development Private Limited, the Applicant / Transferor Company No. 3 which is a Subsidiary of Anvi Holdings Private Limited, Applicant / Transferor Company No. 1. The Authorised Share Capital of the Transferee Company is Rs. 25,05,00,000/- divided into 30,50,000 Equity Shares of Rs. 10/- each and 2,20,00,000 Preference Shares of Rs. 10/- each. The Issued, Subscribed and Paid-up



Share Capital of the Transferee Company is Rs. 21,53,00,000/- divided into 30,30,000 Equity Shares of Rs.10/- each and 1,85,00,000, 5% Non-Cumulative Redeemable Preference Shares of Rs. 10/- each.The Main Objects of the Transferee Company are set out in its Memorandum and Articles of Association annexed with the Application and marked as **Annexure-8**.

6. The material placed on record discloses that the Transferor Company Nos. 1, 2, 3 and the Transferee Company are Private Limited Companies.The Registered office of the Transferor Company Nos. 1, 2, 3 and Transferee Company is situated at Sukhdham', Flat No. E-2, 7/17 (9-10), Tilak Nagar, Kanpur – 208002 (U.P.) which is within the jurisdiction of this Tribunal.

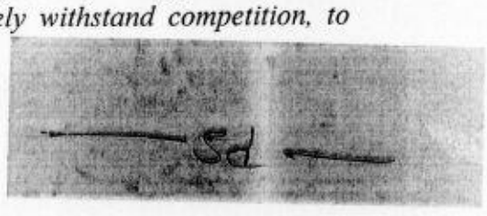
7. The Board of Directors of all the Applicant Companies in their respective meetings held on 1st July, 2021, considered and unanimously approved the proposed Scheme of Amalgamation with 'Appointed Date' as on 1st April, 2021. The copies of the Resolutions passed by the Board of Directors of the respective Applicant Companies are annexed with the Application and marked as ***Annexure-10, Annexure-11, Annexure-12 and Annexure-13*** *respectively.*

8. The Applicant Companies have filed their Audited Financial Statements along with the Directors' Report and Auditors' Report for the financial year ended 31st March, 2021 which are annexed with the Application and marked as ***Annexure-3, Annexure-5, Annexure-7 and Annexure-9*** *respectively.*

9. The Board of Directors of the Applicant Companies have proposed the Scheme of Amalgamation of Anvi Holdings Private Limited ('Applicant / Transferor Company No 1'), Anvi Housing Private Limited ('Applicant / Transferor Company No. 2'), Cawnpore Housing Development Private Limited ('Applicant / Transferor Company No. 3') with Modern Real Estates Private Limited ('Applicant / Transferee Company') for the following reasons:

   (a) The Transferor and Transferee Companies are Holding and Subsidiary Companies and have common control, common management, common place of business and common group administration.

   (b) The amalgamation will lead to emergence of a single entity with strong financial capability to effectively withstand competition, to



effectuate economies of scale and to optimize benefits available under the law. The consolidated Company with far enlarged asset base, higher profitability and net worth will be better placed to access low cost fund for its expansion and diversification requirements.

(c) *The amalgamation will result in significant reduction in the multiplicity of legal and regulatory compliances required at present to be carried by the Amalgamating Companies and will avoid duplication of administrative functions and eliminate multiple record keeping.*

(d) *The amalgamation will result in simplification and rationalization of the holding structure and reduction in corporate legal entities.*

10. It is stated that no inspection, inquiry or investigation proceedings under the provisions of the Companies Act, 2013, or under the provisions of the Companies Act, 1956 are pending against the Applicant Companies.

11. It is stated that the Auditors of the Applicant Companies have not disclosed any mismanagement in the affairs of the Applicant Companies.

12. It is stated that as a consideration for transfer of assets and liabilities pursuant to the 'Scheme of Amalgamation', the Share Exchange Ratio has been determined by CA Sandeep Kumar Agrawal, a Registered Valuer for Securities or Financial Assets, (Registration No. IBBI/RV/06/2019/10705), who has given the Share Entitlement Report which is annexed to the Application and marked as **Annexure -14.**

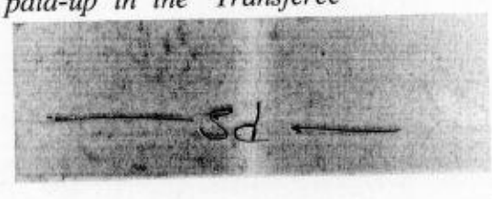
13. As per the Share Entitlement Report, the 'Transferee Company' shall issue and allot the Equity and Preference Shares to the Equity and Preference Shareholders of the 'Transferor Companies' whose names are recorded in the Register of Members / Records of Depositories as beneficial owners on the 'Record Date' to be fixed by the Board of Directors of the 'Transferee Company' as under:-

I. **<u>To the Equity Shareholders of the Transferor Company No. 1</u>**

"1 (One) Equity Share of Rs. 10/- (Rupees Ten only) each credited as fully paid-up in the 'Transferee Company' for every 1 (One) Equity Share of Rs. 10/- (Rupees Ten only) each fully paid up held in the 'Transferor Company No. 1'."

II. **<u>To the Preference Shareholders of the Transferor Company No. 3</u>**

"1 (One) 3% Non-Cumulative Redeemable Preference Share of Rs. 10/- (Rupees Ten only) each credited as fully paid-up in the 'Transferee



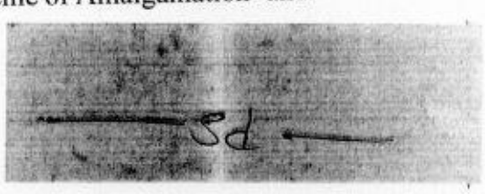
Company' for every 1 (One) 3% Non-Cumulative Redeemable Preference Share of Rs. 10/- (Rupees Ten only) each fully paid up held in the 'Transferor Company No. 3'."

14. The Applicant Companies have stated that the accounting treatment proposed in the Scheme of Amalgamation is in conformity with the Accounting Standards prescribed under Section 133 of the Companies Act, 2013. Certificates from the Statutory Auditors of the respective Applicant Companies have been filed along with the Application as **Annexure – 15, Annexure – 16, Annexure – 17 and Annexure – 18** respectively.

15. The Learned Counsel for the Applicant Companies filed details of Shareholders, Secured Creditors and Unsecured Creditors as below:

i) The Transferor Company No. 1 has 3 (Three) Equity Shareholders, all of them have accorded their consents in the form of affidavits to the proposed 'Scheme of Amalgamation' and also for waiver of separate Meeting of the Equity Shareholders of the Transferor Company No. 1. There are no Preference Shareholders in the Transferor Company No. 1. The list of Equity Shareholders and their consent affidavits *are annexed with the Application and marked as* ***Annexure-19 and Annexure-20*** *respectively.* Further, the Transferor Company No. 1 has no Secured Creditor and has 1 (One) Unsecured Creditor with value of debt aggregating to Rs. 14,160/- (Rupees Fourteen Thousand One Hundred and Sixty only) as on 30th June, 2021. The sole Unsecured Creditor of the 'Transferor Company No.1' has given its consent in writing in the form of an Affidavit signifying its approval to the Scheme and waiving the holding of the Meeting of the Unsecured Creditors of the Transferor Company No. 1 to consider the Scheme of Amalgamation. The list of Secured and Unsecured Creditors of the Transferor Company No. 1 duly certified by the Statutory Auditors and consent affidavit of a sole unsecured creditor *is annexed with the Application and marked as* ***Annexure–21 and Annexure–22*** *respectively.*

ii) The Transferor Company No. 2 is a Subsidiary of the Transferor Company No. 1, as such, the Board of Directors of the 'Transferor Company No. 1' being the cent percent Holding Company of the 'Transferor Company No. 2' has approved the Scheme of Amalgamation without any modification. It has forwarded in the form of an Affidavit its consent to the proposed 'Scheme of Amalgamation' and



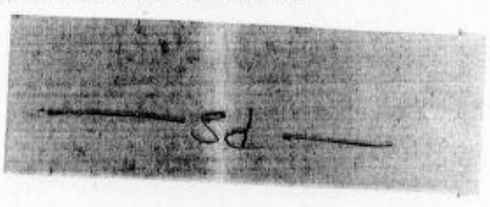
also for waiver of separate Meeting of the Equity Shareholders of the 'Transferor Company No. 2' being the beneficial owner of the entire Paid-up Equity Share Capital of the 'Transferor Company No. 2'. There are no Preference Shareholders in the Transferor Company No. 2. The list of Equity Shareholders and the Affidavits of the 'Transferor Company No. 1' and its nominee consenting to the Scheme and waiving the holding of meeting of Equity Shareholders of Transferor Company No. 2 *are annexed with the Application and marked as* ***Annexure- 23 and Annexure-24*** *respectively.* Further, the Transferor Company No. 2 has no Secured Creditors and has 1 (One) Unsecured Creditor with value of debt aggregating to Rs. 14,160/- (Rupees Fourteen Thousand One Hundred and Sixty only) as on 30th June, 2021. The sole Unsecured Creditor of the 'Transferor Company No.2' has given its consent in writing in the form of an Affidavit signifying its approval to the Scheme and waiving the holding of the Meeting of the Unsecured Creditors of the Transferor Company No. 2 to consider the Scheme of Amalgamation. The list of Secured and Unsecured Creditors of the Transferor Company No. 2 duly certified by the Statutory Auditors and consent affidavit of a sole unsecured creditor *is annexed with the Application and marked as* ***Annexure- 25 and Annexure-26*** *respectively.*

iii) The Transferor Company No. 3 is a Subsidiary of the Transferor Company No. 1, as such, the Board of Directors of the 'Transferor Company No. 1' being the Holding Company of the 'Transferor Company No. 3' has approved the Scheme of Amalgamation without any modification. It has forwarded in the form of an Affidavit its consent to the proposed 'Scheme of Amalgamation' and also for waiver of separate Meeting of the Equity Shareholders of the 'Transferor Company No. 3' being the beneficial owner of the entire Paid-up Equity Share Capital of the 'Transferor Company No. 3'. There are 2 (Two) Preference Shareholders in the Transferor Company No. 3 who have given their consent in writing to the proposed 'Scheme of Amalgamation'. The list of Equity and Preference Shareholders and the Affidavits of the 'Transferor Company No. 1' and its nominee consenting to the Scheme and waiving the holding of meeting of Equity Shareholders of Transferor Company No. 3 and the Affidavits of all the Preference Shareholders of the Transferor Company No. 3 consenting to the



Scheme and waiving the holding of meeting of Preference Shareholders of the Transferor Company No. 3 are annexed with the Application and marked as **Annexure-27, Annexure-28 and Annexure-29** respectively. Further, the Transferor Company No. 3 has no Secured Creditors and has 2 (Two) Unsecured Creditors with value of debt aggregating to Rs. 2,61,212/- (Rupees Two Lakhs Sixty One Thousand Two Hundred and Twelve only) as on 30th June, 2021. All the Unsecured Creditors of the 'Transferor Company No.3' have given their consent in writing in the form of an Affidavit signifying their approval to the Scheme and waiving the holding of the Meeting of the Unsecured Creditors of the Transferor Company No. 3 to consider the Scheme of Amalgamation. The list of Secured and Unsecured Creditors of the Transferor Company No. 3 duly certified by the Statutory Auditors and the consent affidavits of all the unsecured creditors *is annexed with the Application and marked as* ***Annexure- 30 and Annexure-31*** *respectively.*

iv) The Transferee Company is a Subsidiary of the Transferor Company No. 3. The Board of Directors of the 'Applicant Transferor Company No. 3' being the Holding Company of the 'Applicant Transferee Company' has approved the Scheme of Amalgamation without any modification. It has forwarded in the form of an Affidavit its consent to the proposed 'Scheme of Amalgamation' and also for waiver of holding Meeting of the Equity Shareholders of the 'Applicant Transferee Company' being the beneficial owner of the entire Paid-up Equity Share Capital of the 'Applicant Transferee Company'. There are 7 (Seven) Preference Shareholders in the Transferee Company who have given their consent in writing to the proposed 'Scheme of Amalgamation'. The list of Equity and Preference Shareholders and the Affidavits of the Equity and Preference Shareholders of the 'Transferee Company', consenting to the Scheme and waiving the holding of separate meetings of Equity and Preference Shareholders of the Transferee Company *are annexed with the Application and marked as* ***Annexure- 32, Annexure- 33 and Annexure-34*** *respectively.* Further, the Transferee Company has no Secured Creditors and has 5 (Five) Unsecured Creditors with value of debt aggregating to Rs. 25,87,58,787/- (Rupees Twenty Five Crore Eighty Seven Lakhs Fifty Eight Thousand Seven Hundred and Eighty Seven only) as on 30th June, 2021. The list of Secured and



Unsecured Creditors of the Transferee Company duly certified by the Statutory Auditors and the consent affidavits of all the unsecured creditors *is annexed with the Application and marked as* ***Annexure-35 and Annexure-36*** *respectively.*

16. Learned Practising Company Secretary S.K. Gupta, appearing for the Applicant Companies made the following contentions with respect to the dispensation of the requirement of convening meetings:

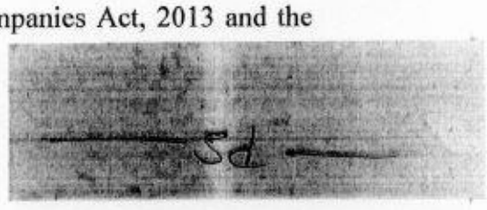
A. All the Equity Shareholders of the Transferor Company No. 1, Transferor Company No. 2, Transferor Company No. 3 and the Transferee Company have given their written consents by way of Affidavits, therefore, the requirement of convening meetings of the Equity Shareholders of the Transferor Company No. 1, Transferor Company No. 2, Transferor Company No. 3 and the Transferee Company may be dispensed with.

B. All the Preference Shareholders of the Transferor Company No. 3 and the Transferee Company have given their written consents by way of Affidavits, therefore, the requirement of convening meetings of the Preference Shareholders of the Transferor Company No. 3 and the Transferee Company may be dispensed with.

C. As there are no Secured Creditors in the Transferor Company No. 1, Transferor Company No. 2, Transferor Company No. 3 and the Transferee Company, therefore, the necessity for convening the Meetings of the Secured Creditors of the Transferor Company No. 1, Transferor Company No. 2, Transferor Company No. 3 and the Transferee Company does not arise.

D. All the Unsecured Creditors of the Transferor Company No. 1, Transferor Company No. 2, Transferor Company No. 3 and the Transferee Company, have given their written consents by way of Affidavits, therefore, the requirement of convening meetings of the Unsecured Creditors of the Transferor Company No. 1, Transferor Company No. 2, Transferor Company No. 3 and the Transferee Company may be dispensed with.

17. Taking into consideration the joint Application and the documents filed therewith showing compliance of various provisions of the Companies Act, 2013 and the



Rules framed thereunder, this Tribunal issues the following directions with respect to convening and holding of the meetings of the Equity and Preference Shareholders, Secured and Unsecured Creditors of the Applicant Companies or dispensing with the same as follows:-

A. APPLICANT / TRANSFEROR COMPANY NO. 1

- **With respect to Equity Shareholders**

The Applicant Transferor Company No. 1 has 3 (Three) Equity Shareholders and all of them have given their consent in the form of affidavits in support of the Scheme constituting 100% in value and in number of the Equity Shareholders which are on record, hence the necessity of convening a meeting of the Equity Shareholders is dispensed with.

- **With respect to Preference Shareholders**

The Applicant Transferor Company No. 1 has no Preference Shareholder, hence the necessity of convening a Meeting of Preference Shareholders does not arise.

- **With respect to Secured Creditors**

The Applicant Transferor Company No. 1 has no Secured Creditors, hence the necessity of convening a Meeting of Secured Creditors does not arise.

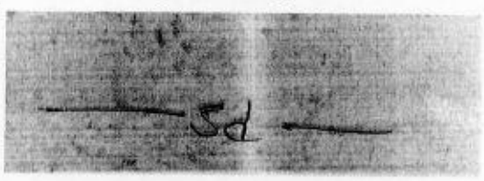
- **With respect to Unsecured Creditors**

The Applicant Transferor Company No. 1 has one Unsecured Creditor, who has given its consent in writing in the form of an Affidavit in support of the Scheme constituting 100% in value of unsecured debts of the Transferor Company No. 1 which is on record, hence the necessity of convening a meeting of the Unsecured Creditors is dispensed with.

B. APPLICANT / TRANSFEROR COMPANY NO. 2

- **With respect to Equity Shareholders**

The Applicant Transferor Company No. 2 is a Subsidiary of the Applicant Transferor Company No. 1, as such, being the beneficial owner of the entire Paid-up Equity Share Capital of the 'Applicant Transferor Company No. 2' , the Applicant Transferor Company No. 1 along with its nominee has given consent in the form of affidavits constituting 100% in value and in number of the Equity Shareholders which are on record, hence the necessity of convening a meeting of the Equity Shareholders is dispensed with.



- **With respect to Preference Shareholders**

The Applicant Transferor Company No. 2 has no Preference Shareholders, hence the necessity of convening a Meeting of Preference Shareholders does not arise.

- **With respect to Secured Creditors**

The Applicant Transferor Company No. 2 has no Secured Creditors, hence the necessity of convening a Meeting of Secured Creditors does not arise.

- **With respect to Unsecured Creditors**

The Applicant Transferor Company No. 2 has one Unsecured Creditor, who has given its consent in writing in the form of an Affidavit in support of the Scheme constituting 100% in value of unsecured debts of the Transferor Company No. 2 which is on record, hence the necessity of convening a meeting of the Unsecured Creditors is dispensed with.

C. **APPLICANT / TRANSFEROR COMPANY NO. 3**

- **With respect to Equity Shareholders**

The Applicant Transferor Company No. 3 is a Subsidiary of the Applicant Transferor Company No. 1, as such, being the beneficial owner of the entire Paid-up Equity Share Capital of the 'Applicant Transferor Company No. 3', the Applicant Transferor Company No. 1 along with its nominee has given consent in the form of affidavits constituting 100% in value and in number of the Equity Shareholders which are on record, hence the necessity of convening a meeting of the Equity Shareholders is dispensed with..

- **With respect to Preference Shareholders**

The Applicant Transferor Company No. 3 has 2 (Two) Preference Shareholders, who have given their consent in writing in the form of Affidavits in support of the Scheme constituting 100% in value and in number of the Preference Shareholders which are on record, hence the necessity of convening a meeting of the Preference Shareholders is dispensed with.

- **With respect to Secured Creditors**

The Applicant Transferor Company No. 3 has no Secured Creditors, hence the necessity of convening a Meeting of the Secured Creditors does not arise.

- **With respect to Unsecured Creditors**



The Applicant Transferor Company No. 3 has 2 (Two) Unsecured Creditors with value of debt aggregating to Rs. 2,61,212/- (Rupees Two Lakhs Sixty One Thousand Two Hundred and Twelve only), who have given their consent in writing in the form of Affidavits in support of the Scheme constituting 100% in value of unsecured debts of the Transferor Company No. 3 which are on record, hence the necessity of convening a meeting of the Unsecured Creditors is dispensed with.

D. APPLICANT / TRANSFEREE COMPANY

- **With respect to Equity Shareholders**

  The Applicant Transferee Company is a Subsidiary of the Applicant Transferor Company No.3, as such, being the beneficial owner of the entire Paid-up Equity Share Capital of the 'Applicant Transferee Company ' , the Applicant Transferor Company No. 3 along with its nominee has given consent in the form of affidavits constituting 100% in value and in number of the Equity Shareholders which are on record, hence the necessity of convening a meeting of the Equity Shareholders is dispensed with.

- **With respect to Preference Shareholders**

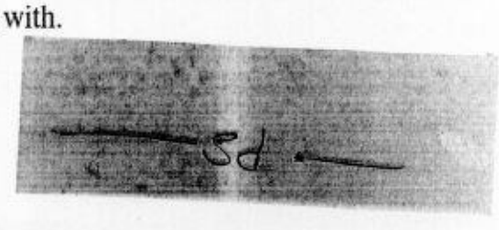
  The Applicant Transferee Company has 7 (Seven) Preference Shareholders, who have given their consent in writing in the form of Affidavits in support of the Scheme constituting 100% in value and in number of the Preference Shareholders which are on record, hence the necessity of convening a meeting of the Preference Shareholders is dispensed with.

- **With respect to Secured Creditors**

  The Applicant Transferee Company has no Secured Creditors, hence the necessity of convening a Meeting of the Secured Creditors does not arise.

- **With respect to Unsecured Creditors**

  The Applicant Transferee Company has 5 (Five) Unsecured Creditors with value of debt aggregating to Rs. 25,87,58,787/- (Rupees Twenty Five Crore Eighty Seven Lakhs Fifty Eight Thousand Seven Hundred and Eighty Seven only), who have given their consent in writing in the form of Affidavits in support of the Scheme constituting 100% in value of unsecured debts of the Transferee Company which are on record, hence the necessity of convening a meeting of the Unsecured Creditors is dispensed with.



18. The Tribunal further directs to serve the Notice of Application as per the provisions of sub-section (5) of Section 230 of the Companies Act, 2013 and Rule 8 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016, along with the Scheme of Amalgamation and related documents to the Central Government through the office of Regional Director, Northern Region, Ministry of Corporate Affairs, New Delhi, Registrar of Companies, Uttar Pradesh, Kanpur, Official Liquidator, Allahabad and Income-Tax Department having jurisdiction over the Applicant Companies while quoting PANs of the respective Applicant Companies and such other relevant Sectoral Regulators / Authorities, if applicable, which are likely to be affected by the proposed Scheme, by sending the same by hand delivery or by the registered post / speed post within seven days from the date of receipt of certified copy of this order for filing their representations, if any, on the petition within thirty days from the date of receipt of this notice.

19. The Applicant Companies shall within seven days thereafter file affidavit of service of notice on statutory authorities.

20. If no such representation is received by the Tribunal within the said period of thirty days of receipt of such notices, it shall be presumed that such authorities are having no representation / objection on the proposed Scheme of Amalgamation.

21. With the above directions CA No. 17 / ALD / 2021 is allowed and accordingly, disposed of.



JUSTICE RAJESH DAYAL KHARE

MEMBER (J)

Date: 16.08.2021

Swati Gupta
(LRA)